

IN THE COURT OF APPEAL OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF SRI LANKA

1. Prasanna Ajith Kumara,
No.258/9, Ihala Yagoda,
Imbulgoda.
2. M. Jayalath Mallawa Arachchi,
No.319/1, Balummahara,
Imbulgoda.
Petitioner

CASE NO: CA/WRIT/276/2017

Vs.

1. C.P.W. Gunatilake,
Acquiring Officer/Divisional
Secretary,
Divisional Secretariat,
Ananda Mawatha,
Gampaha.
2. Road Development Authority,
'Maganeguma Mahamedura',
No.216,
Denzil Kobbekaduwa Mawatha,
Koswatta,
Battaramulla.

3. D.M. Dayaratne,
Director (Lands),
Road Development Authority,
'Maganeguma Mahamedura',
No.216,
Denzil Kobbekaduwa Mawatha,
Koswatta,
Battaramulla.
4. N.R. Suriyarachchi,
Chairman,
Road Development Authority,
'Maganeguma Mahamedura',
No.216,
Denzil Kobbekaduwa Mawatha,
Koswatta,
Battaramulla.
5. Janaka Bandara Tennakoon,
Minister of Lands and Land
Development,
'Mihikatha Medura',
Land Secretariat,
No.1200/6, Rajamalwatta Road,
Battaramulla.
6. Gayantha Karunathilaka,
Minister of Lands and
Parliamentary Reforms,
Ministry of Lands,
'Mihikatha Medura',
Land Secretariat,
No.1200/6, Rajamalwatta Road,
Battaramulla.

7. Lakshman Kiriella,
 Minister of Higher Education and
 Highways,
 Ministry of Highways,
 “Maganeguma Maha Medura”,
 No.216,
 Denzil Kobbekaduwa Mawatha,
 Koswatta,
 Battaramulla.
Respondents

Before: Mahinda Samayawardhena, J.
 Arjuna Obeyesekere, J.

Counsel: H. Withanachchi with Shantha Karunadhara
 for the Petitioners.
 Nayomi Kahawita, S.C., for the
 Respondents.

Argued on: 27.08.2020

Decided on: 06.10.2020

Mahinda Samayawardhena, J.

This case is connected to CA/WRIT/275/2017, in which the
 Judgment was delivered today.

The facts of both matters and the pleadings are almost identical;
 only the names of the Petitioners are different.

Both matters were argued together. Learned Counsel for both parties agreed to abide by a single Judgment to be delivered in the connected case.

The parties in the instant case are bound by the Judgment delivered in CA/WRIT/275/2017 today.

Accordingly, the application of the Petitioners is dismissed but without costs.

Judge of the Court of Appeal

Arjuna Obeyesekere, J.

I agree.

Judge of the Court of Appeal